

25STLC02798 25STLC02798

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Case Number: 25STLC02798 Hearing Date: July 1, 2026 Dept: 26

TENTATIVE RULING:

Defendant A&B Maintenance and

General Contractors dba A & B General Contractors Co.'s Motion to Quash

Service of Summons and Set Aside Default and Default Judgment is denied.

Analysis:

On April 8, 2025, Plaintiff Creditors

Adjustment Bureau, Inc. ("Plaintiff") filed the instant collections action

against Defendant A&B Maintenance and General Contractors dba A & B

General Contractors Co. ("Defendant"). Following Defendant's failure to file a

responsive pleading, the Court entered its default on December 23, 2025, and default judgment on January 28, 2026.

Defendant filed the instant

Motion to Quash Service of Summons and Set Aside Default and Default Judgment

on April 14, 2026. Plaintiff filed an opposition on June 17, 2026 and Defendant

replied on June 24, 2026.

Discussion

Quash Service and Deem Entry of Default and Default

Judgment Void Due to Improper Service

Defendant first moves to

quash service of the Summons and Complaint pursuant to Code of Civil Procedure

section 418.10, and for relief from the default and default judgment pursuant

to Code of Civil Procedure section 473, subdivision (d). Code of Civil Procedure section 418.10 provides: “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1), emphasis added.) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20, subd. (a)(3).)

Code of Civil Procedure section 473, subdivision (d) provides that “[t]he court may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) In *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, the California Supreme Court held that there is no two-year limitation to challenge a void default judgment, regardless of whether it is valid on its face. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225-226.) A motion for relief under Code of Civil Procedure section 473, subdivision (d), therefore, can be brought at any time.

On November 25, 2025, Plaintiff filed Proof of Substitute Service, which states that the papers were served on Defendant through Afshin Salahshour, Registered Agent, by leaving them with “M. Rochter Doe,” refused to give first name, clerk at 6442 Platt Avenue #140 West Hills, CA. (Proof of Substitute Service, 11/25/25, ¶¶3-5.) M. Rochter Doe is described as “a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served.” (Id. at ¶5.) The papers were then mailed to the same address on November 5, 2025. (Ibid.)

Defendant’s Motion challenges the proof of service as failing to demonstrate compliance with the requirements for service at a Commercial Mail Receiving Agency (“CMRA”), as set forth in Code of Civil Procedure section 415.20, subdivision (c), which allows service on a corporation at a private mailbox obtained through a CMRA in accordance with Business & Professions Code section 17538.5. Under the Business & Professions Code, the owner or operator of the CMRA shall place a copy of the documents or notice of their receipt in the customer’s mailbox within 48 hours, and send the documents to the customer’s last known address within five days of receipt. (Bus. & Profs. Code, § 17538.5, subd. (d).) Defendant argues that there is no evidence Plaintiff complied with these requirements. In opposition, Plaintiff presents evidence from

the manager of the UPS store at 6442 Platt Avenue that notice of the papers delivered by the process server were left in Box No. 104 and then mailed to the last known address for Mr. Salahshour, the Registered Agent. (Opp., Star Decl., ¶¶8-9 and Exh. 1.) Plaintiff, therefore, has demonstrated that service upon Defendant to the mailbox located at 6442 Platt Avenue complied with the statutory requirements for service.

Defendant also argues that 6442 Platt Avenue address is not Defendant's corporate office or place of business. This is not relevant. Section 415.20 allows for service at a private mailbox where that is the only address reasonably known. (Code Civ. Proc., § 415.20(c).) Defendant does not argue or demonstrate that Plaintiff could have served it at its corporate office or place of business. 6442 Platt Avenue, as the address of Defendant's agent for service of process, was an appropriate address for service under Code of Civil Procedure section 415.20, subdivision (c).

In its reply, Defendant argues that the proof of service filed by Plaintiff attests to service under 415.20, subdivision (b), and that the requirements for service were not met because the documents were left with a UPS employee. This is a technical defect in the proof of service but does not establish that service was not proper. (Crenshaw v. Smith (1946) 74 Cal. App. 2d 255, 263 ("[I]t is the fact of service and not the proof of service which determines the validity or invalidity of a judgment.")). The proof of service accurately states where and with whom the documents were left. The Starr Declaration establishes that the notice and mailing requirements of Business & Professions Code section 17538.5 were met. The use of the term "substitute service" in the proof of service does render the judgment void.

Therefore, the request to quash service of the Summons and deem the entry of default and default judgment void, are denied.

Relieve Defendant from Entry of Default and Default Judgment on account of Mistake, Surprise, Inadvertence, or Excusable Neglect

Defendant alternatively moves for relief from the entry of default and default judgment on account of its mistake, surprise, inadvertence, or excusable neglect. Relief under Code of Civil Procedure section 473, subdivision (b) must be sought within a reasonable time, no more than six months after entry of the order from which relief is sought, and

must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions (2001) 94 Cal.App.4th 130, 143.)

First, the Motion does not show that it was brought within a reasonable time. It only argues that the Motion is timely because it was filed within the six-month outer deadline, but does not address the reasonableness requirement. Where the statute requires that “ ‘the application must be made within a ‘reasonable time’ ... what is a reasonable time in any case depends upon the circumstances of that particular case.” While in “the determination of that question, a large discretion is necessarily confided to [the trial] court” ... there must be some showing—some evidence—as the basis for the exercise of such discretion.’ ” (Caldwell v. Methodist Hospital (1994) 24 Cal.App.4th 1521, 1524 [citing Carrasco v. Craft (1985) 164 Cal.App.3d 796, 805].) Defendant retained counsel in early February 2026, at which time defense counsel reached out to Plaintiff's counsel. (Motion, Sadeghi Decl., ¶¶12-15 and Exhs. H-J.) The attorneys' discussion concluded by February 12, 2026, but Defendant did not file the instant Motion for another two months. No explanation is provided for this delay.

Nor does Defendant provide a reasonable excuse for failing to respond to the action. Defendant's CEO, also Afshin Salahshour, declares that he believed only personal service of a summons and complaint triggers the need to respond to an action. (Motion, Salahshour Decl., ¶13.) No other explanation is provided regarding the source of this erroneous belief, nor did Salahshour apparently seek to confirm this belief with anyone, or through any resource. This does not describe excusable conduct, but rather inexcusable neglect.

Conclusion

Defendant A&B Maintenance and General Contractors dba A & B General Contractors Co.'s Motion to Quash Service of Summons and Set Aside Default and Default Judgment is denied.

Plaintiff to give notice.